

INTERREGNUM NULLIFICANS

Statement of Record: An Unperformed Statutory Obligation under EU Regulation 2021/821

Constitutional Contumacy, Competent Authority Fragmentation, and the 2026 Council Presidency

Version 13 — September 5th, 2026

Submitted by: The Meinhardt Initiative

Ombudsman Complaint: OMB-260331-CSD014

PETI Petition: Article 227 TFEU (pending)

Public repository: dr-bosch.github.io/nullification-loops

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Transmitted to: Seanad Select Committee on EU Scrutiny and Transparency; European Parliament Committee on Petitions (PETI); Office of the European Ombudsman (Article 228 TFEU); DG Competitiveness and Trade, General Secretariat of the Council; Commissioner Michael McGrath (Democracy, Justice, Rule of Law and Consumer Protection); Commissioner Maroš Šefčovič (Trade and Economic Security); Registry of the Court of Justice of the European Union

CC: Minister Helen McEntee (Defence, Foreign Affairs and Trade); Taoiseach Micheál Martin; Tánaiste Simon Harris; Minister Peter Burke (Enterprise, Trade and Employment); Minister of State Thomas Byrne (European Affairs and Defence); Joint Committee on European Union Affairs (JCEUA); Joint Committee on Defence and National Security

I.

Summary Statement

This document records a statutory obligation under EU Regulation 2021/821 (the recast Dual-Use Regulation) that has not been discharged across nineteen years, spanning five governments, six Taoisigh, and two successive national competent authority designations. It is submitted not as policy advocacy but as a documented evidentiary record for institutional recipients with the standing to act on it.

The originating failure is this: since May 2006, a corpus of Operations Research material with documented dual-use characteristics has been presented to Irish authorities. The Department of Foreign Affairs and Trade (DFA) held the national competent authority designation under EU Regulation 428/2009 and subsequently Regulation 2021/821 from 2009 until August 22nd, 2024. Across that full period of designation, it produced **zero evaluations** and **zero statutory determinations**. The material was received, retained, and never assessed.

On August 22nd, 2024, the Control of Exports Act 2023 commenced, transferring the competent authority designation to the Department of Enterprise, Trade and Employment (DETE). The transfer was executed without audit of the accumulated obligation, without discharge of the unperformed duty, and without any mechanism requiring the receiving authority to assess material held by the transferring authority. The accumulated obligation was not extinguished by the transfer. It was structurally abandoned.

The transfer did not produce a modernised competent authority. It produced a competent authority function fragmented across three institutions ---DETE (licensing), DFA (international regime memberships), and the Department of Defence (security assessment architecture) ---with no statutory coordination mechanism between them. The function EU Regulation 2021/821 requires ---an integrated assessment with simultaneous access to the commercial export dimension and the security application dimension ---is **architecturally impossible** within the current Irish structure. This is the operative compliance failure before the Commission's mandatory evaluation of Regulation 2021/821, which opens between September 10th, 2026 and September 10th, 2028.

Ireland assumed the Council Presidency on **July 1st, 2026**. In that capacity, the Irish State now chairs Council proceedings on dual-use technology controls, rule of law, and civil protection coordination. The structural conditions documented in this record will enter the Commission's formal evaluation record regardless of domestic resolution.

The breach of fiduciary duty is widespread. The ethical breach is clear. The security breaches are manifold. The duty to reason is repeatedly neglected; the impasse is manifest, active, and compounding. The duty of care is undischarged. It has been handed from minister to minister, from government to government, without a single statutory determination being issued ---while material directly relevant to national security has been ignored at every level of the executive and legislature simultaneously. Ireland assumes the Council Presidency on July 1st, 2026. The Commission's evaluation of Regulation 2021/821 opens September 10th, 2026. This record is publicly indexed and transmitted to European institutional recipients.

II.

The Documented Breach Sequence, 2006--2026

The following table records each distinct and unresolved breach in chronological order. Each entry is documented and timestamped. EU Regulation 2021/821 is the structural thread connecting every entry.

Date	Event	What the Record Shows	Legal / Security Character
May--Jul. 2006	Initial Presentations to DoD, OEP, FIN, OPW, DCMNR (Energy); Ministers O'Dea, Taoiseach Ahern	Corpus of research with dual-use characteristics presented. Taoiseach Ahern verbally committed to follow-up. DoD and DOT assumed custodial responsibility.	Competent authority obligation crystallises under EU Dual-Use Reg. 428/2009.
Nov. 18, 2008	Acknowledgement from David King, Assistant Private Secretary to Taoiseach Brian Cowen	Letter from David King, Department of the Taoiseach, acknowledging receipt of email of 14 November 2008: "which will be brought to the Taoiseach's attention as soon as possible." Commissions on Transport, Development (STI), and Defence named as subject matter. NUI Galway Technology Transfer and Council of State noted.	Department of the Taoiseach formally on notice. Taoiseach Cowen's office in receipt of the submission. No substantive follow-up recorded.
Feb. 2009	Presentation to Deputy Director O'Leary, Irish Aid (DFA), Limerick	4.5-hour technical presentation. Director O'Leary gave written commitment to produce a report. Minister Martin's office echoed commitment.	Report never produced. Never disclosed. First documented Silence Veto. Obligation has compounded through every subsequent office held by Taoiseach Martin.
May 21, 2009	"Delay or Deferral?" —Multi-departmental escalation: DoD, Transport (DCENR/Energy), forwarded to Ministers O'Dea, Dempsey, Ryan; cc Minister Martin (Foreign Affairs), Taoiseach's private office	Formal email to DFA (Ms Sinéad Ryan, Iveagh House) simultaneously forwarded to Ministers O'Dea (Defence), Dempsey (Transport), and Ryan (Energy/DCENR). CC'd to Minister Martin (Foreign Affairs) and privateoffice@taoiseach.gov.ie. Demands ministerial review, notes Irish Aid non-response to the Feb. 2009 scientific enquiry, and flags FOI and legal options.	Three departments and the Taoiseach's office simultaneously on notice. Cross-departmental character of the submission formally established. No ministerial response recorded from any addressee.

Jul. 3, 2009	OEP (Mr Kelliher): Declines on Remit	"Areas highlighted do not fall within the coordination remit of the Office of Emergency Planning." No statutory account of inapplicability provided.	Third documented OEP position on the corpus. In May 2006, Mr. Larry Rooney characterised the office as not the first point of contact on international security or operational intelligence, invited submission by email, stalled processing on a credentials condition, and identified no alternative body — while conceding in the same exchange that the Petitioner "may have information of interest to the State." No referral issued. The thread terminated without destination. In July 2009, Mr. Kelliher declined on remit grounds. In June 2025, Mr. McMoreland issued a substantive adequacy conclusion. Three positions across nineteen years, none reconciled. The 2006 position is internally contradictory on its own terms: State interest acknowledged, engagement invited, processing blocked, no referral made.
Mar. 9, 2011	End of Martin tenure at Foreign Affairs; succession of Minister Gilmore —Department reconfigured as Foreign Affairs and Trade	Micheál Martin ceases to be Minister for Foreign Affairs (held since May 2008 under Taoiseach Cowen). Eamon Gilmore appointed Minister for Foreign Affairs and Trade on the same date —the expanded title coinciding with, and created by, the personnel change. By this date Minister Gilmore had already been contacted on ten occasions. The addition of the Trade remit to a department already carrying an unperformed dual-use competency obligation was not flagged as requiring any review of that obligation.	The competency vacancy created under Martin's tenure transferred unremarked into an expanded portfolio. The addition of "Trade" to the ministerial title —directly engaging the commercial dimension of dual-use assessment— without any audit of the unperformed CA obligation constitutes a second structural escape of the same kind as the 2024 DFA→DETE transfer. A red-card moment unrecognised as such.
Aug.-Sep. 2010	Coordination with Dr Paul Connors, Head of Communications, HSE	"Operations Research can save lives immediately; this is a turn-key solution." Multiple letters exchanged.	Office fully briefed; no progression; deferred/abandoned.
Jan. 2011	Dual-use implications flagged to Dept. of Taoiseach and France DAS	Dual-use implications formally on record at Department of the Taoiseach.	Dual-use dimension on the State's formal record fourteen years before the JCEUA's Oct. 2025 declination.
Mar.-Apr. 2020	All 220 Oireachtas Members & President Contacted	During Community Call, all 220 members and the President were formally contacted. Commissioner McGrath was on notice as a TD.	Automated acknowledgements only. The State cannot claim subsequent ignorance.
Jun.--Sep. 2024	Ministerial Acknowledgement Series — Five Departments	Five formal acknowledgements (DOT-TH-03856-2024; FIN-MO-03632-2024; DFA-TMO-05256-2024; DOD-MO-01206-2024). All departments subsequently silent.	No substantive engagement.

Sep. 12, 2024	Joint Letter to Taoiseach Harris, Tánaiste Martin, Minister Chambers	Named dual-use goods, paramilitary intelligence, and EU regulatory compliance as operative legal dimensions. 34-page Summary of Enquiry attached.	Last date for substantive multi-ministerial engagement before formal complaint.
Aug. 22, 2024	DFA→DETE Transfer: Control of Exports Act 2023 commences	CA designation transferred. Tánaiste held both Foreign Affairs and Defence portfolios. Did not progress the outstanding obligation, did not refer the record to DETE, and issued no ministerial determination.	TRANSFER-WITHOUT-DISCHARGE CONFIRMED. Accountability clock reset to zero while underlying obligation remained at year eighteen.
2024	FIN-MO-03632-2024 forwarded. Return of dossier to Tánaiste Martin	Dossier returned to Tánaiste Martin, breaking a 14-year embargo. Matter formally before the Tánaiste at the precise moment of the CA transfer.	Constitutional contumacy confirmed at Tánaiste level.
2024--present	Defence Technology Cluster Ireland (DTCI) established	DTCI established for civilian protection, critical infrastructure resilience, and emergency-response innovation —the precise domain the O.R. submissions of 2006 addressed. No public record connects DTCI's formation to the unprocessed record.	Either the Nullification Loop produced a policy instrument reinventing a capability already in custody since 2006, or the record was knowingly excluded from DTCI's formation. Either answer belongs in the Commission's evaluation record.
Jan. 24, 2025 (Storm Éowyn)	OEP operationally overwhelmed, writing from inside the emergency	"We are a little swamped at the minute with the severe weather response." Technology designed to prevent such overload had remained unprocessed since 2006.	Operational failure documented in real time, in the same email thread as the submission.
Jun. 1, 2025	OEP (Mr McMoreland): Adequacy Conclusion	Claimed OR methodologies already in use across many sectors. Cited Stochastic Programming as representative.	Internally incoherent: OEP overwhelmed by Storm Éowyn five months earlier, then declared existing implementations adequate.
Jun. 3, 2025	Formal rebuttal submitted to Mr McMoreland	OEP conclusions formally contested on three grounds: generic disciplinary awareness ≠ evaluation of specific corpus; CA obligation remains unperformed; 2009 committed report never produced.	Rebuttal never answered. Eight months of silence followed.
Feb. 4, 2026	Minister McEntee Foreclosure (DOD-MO-01201-2025)	Cites OEP Jun. 1, 2025 letter as authority and closes the file. No reference to: the Jun. 3 rebuttal; Storm Éowyn; the CA obligation; the 226-page complaint; the 19-year record.	CRITICAL —Primary certiorari target. Three independent irrationality grounds under O'Keeffe. Meadows applies on reasons failure.
Mar. 2026	Ombudsman Complaint lodged: OMB-260331-CSD014	Complaint documents systematic administrative silence and the McEntee Foreclosure. Section 7 compelled production of DFA internal file sought.	Active complaint. Eight charges under s.4(2)(b)(i)–(vii) and s.1(1).
Mar. 2026	PETI Petition under Article 227 TFEU (pending)	Full record submitted to the European Parliament Committee on Petitions.	Pending EU-level petition. Parallel to Ombudsman complaint under Art. 228 TFEU.
Apr. 22, 2026	Formal submission to DG Competitiveness and Trade (Council Secretariat)	Three-institution fragmentation formally placed before the Council Secretariat. Commission evaluation window (Sep. 10, 2026) named as entry point.	Council Secretariat formally on notice. Presidency Paradox placed before the body with Presidency preparation responsibility.

III.

The Parliamentary Channels: A Record of Structural Foreclosure

The Joint Committee on European Union Affairs has been placed on notice of the unperformed obligation under EU Regulation 2021/821 on **seven separate occasions**. Its mandate encompasses the scrutiny of DFA compliance with EU law. It declined, then deleted. The Joint Committee on Defence and National Security noted a submission in private session and produced nothing further. The Joint Committee on Public Petitions did not reply to **eighteen contacts**. The Seanad Select Committee refused a submission without statutory basis.

The combined operation of these four channels constitutes a **nullification loop**. Historical communications with EU-focused committees go back to May 2008, when the Sub-Committee on Ireland's Future in the European Union was invited to review the material —multiple times, without acknowledgement.

Channel	Date	What Was Submitted	What the Record Shows
JCEUA Contact Point 1	Sep. 8, 2025	Ten EU-law dimensions named: Dual-use goods (Reg. 2021/821); Windsor Framework; Single Market parity; AI/GDPR; Energy security; EU Council Presidency; Subsidiarity (Art. 5 TEU); Rule of Law (Art. 2 TEU); Charter rights (Arts. 41, 47 CFR); EU external dual-use framework	Committee deliberated Oct. 1, 2025. Did not address a single one of the ten EU-law dimensions named.
JCEUA-I-57 Contact Point 2	Oct. 7, 2025	Formal declination issued.	Final sentence records that correspondence was subsequently deleted. Deletion without transmission engages Article 41 CFR directly.
JCEUA Contacts 3--7	Nov. 2025 – Mar. 2026	Five further contacts including direct approach to Commissioner McGrath (Nov. 27, 2025); Determination of Petition (Dec. 12, 2025); consolidating submission to Clerk Farmer (Mar. 7, 2026).	No response across any of the five subsequent contacts. Committee was copied on Art. 2 TEU breach characterisation. Silence in response is itself part of the record.
Joint Committee on Defence & National Security S-2025-0174-DEF	Sep. 19, 2025; Dec. 18, 2025	Submission declined on jurisdiction grounds. Nov. 26 resubmission noted in private session.	Noted. Not determined. Not referred. A committee cannot hold oversight responsibility for the CA designation and simultaneously claim non-performance falls outside remit.
Joint Committee on Public Petitions (JCPP)	Jun. 2025 – Feb. 2026	18 formal communications over 8 months. Zero replies.	Constitutional petition mechanism not performed once across eighteen contacts. Arts. 15.2.1 (Constitution) and 47 CFR engaged.
Seanad Select Committee on EU Scrutiny	Mar. 11--12, 2026	Submission addressing EU Reg. 2021/821 non-compliance refused by Secretariat without committee vote, without citing a Standing Order, without statutory basis.	Seventh instance of acknowledgement-as-closure. Senator McDowell placed on record that the scrutiny function had been "effectively opposed and sabotaged for years."

Senator McDowell's observation at the March 3rd sitting is directly operative here: the Cabinet procedure requiring Ministers to warn each other of cross-departmental implications "is not replicated in the Oireachtas between the various committees." This submission is the notification the Oireachtas has not replicated. It has been placed before seven bodies. None has transmitted it to a body that would examine it on the merits.

IV.

Dereliction Under Emergency: The OEP Correspondence, Storm Éowyn, and the Foreclosure of February 4th, 2026

The OEP's engagement with this corpus spans three positions across nineteen years, none reconciled. In May 2006, Mr. Larry Rooney acknowledged that the Petitioner "may have information of interest to the State," invited submission of relevant data by email, then stalled processing on a credentials condition without identifying any alternative body. The thread terminated without destination: State interest conceded, engagement opened, outcome nil. In July 2009, Mr. Kelliher declined to engage on remit grounds. In June 2025 — five months after Storm Éowyn, during which the OEP was operationally engaged by the precise class of emergency the corpus was designed to address — Mr. McMoreland issued a substantive adequacy conclusion finding existing implementations sufficient, without reconciling either prior position and without any qualitative evaluation of the submitted corpus. The formal rebuttal of June 3rd, 2025 was not answered in the eight months before the Foreclosure issued. The 2006 position is internally contradictory on its own terms: State interest was acknowledged and engagement was invited, while processing was simultaneously blocked and no referral was made. That internal contradiction prefigures the 2025 one. What follows are the three independent irrationality grounds under which the McEntee Foreclosure — which relied exclusively on the 2025 conclusion — is the primary certiorari target.

The OEP's 2009 remit declination and 2025 adequacy conclusion are mutually exclusive. The McEntee Foreclosure of February 4th, 2026 relies on the 2025 conclusion without acknowledging the 2009 contradiction, without reference to Storm Éowyn, without reference to the formal rebuttal of June 3rd, 2025, and without reference to the competent authority obligation. Three independent irrationality grounds under *O'Keeffe* apply. *Meadows* applies on reasons failure. This is the **primary certiorari target** in the High Court proceedings.

IV.1 — Conflation of Generic Discipline with Specific Corpus

The competent authority obligation is discharged by evaluating the specific submitted material against the statutory framework. It is not discharged by confirming that the subject matter exists as a discipline. The OEP did not evaluate the corpus.

IV.2 — Reliance on Contested and Unanswered Conclusions

The McEntee letter cites the OEP's June 1st, 2025 letter as dispositive. Those conclusions were formally contested by the rebuttal of June 3rd, 2025. The rebuttal was never answered across eight months. *Meadows v Minister for Justice* [2010] 2 IR 701 requires adequate reasons. Contested, unanswered conclusions are not adequate reasons. Minister Helen McEntee (Defence, Foreign Affairs and Trade) is the signatory. The determination she issued relied on conclusions her own department had not defended.

IV.3 — Internal Incoherence Against the Storm Éowyn Timeline

The OEP concluded on June 1st, 2025 that existing OR implementation in Irish DRM was adequate — five months after Storm Éowyn, during which the OEP itself was operationally overwhelmed. A finding of adequacy reached in the immediate aftermath of a nationally acknowledged emergency planning failure is internally incoherent on the face of the public record. Reviewable under *O'Keeffe v An Bord Pleanála* [1993] without further argument.

V.

The Transfer as Structural Escape: Fragmentation, DTCl, and the Commission Evaluation Window

The Control of Exports Act 2023 commenced on August 22nd, 2024, transferring the national competent authority designation under EU Regulation 2021/821 from the Department of Foreign Affairs and Trade to the Department of Enterprise, Trade and Employment. The procedural modernisation was valid: legislation passed, commencement order made, new authority designated.

What none of these procedural outputs addressed was the substance. The DFA had held the designation for eighteen years. Across that period it produced **zero evaluations** and **zero statutory determinations** on the material formally submitted since May 2006. The Control of Exports Act 2023 did not require the DFA to audit the accumulated obligation before transfer, did not require the DFA to transmit the unprocessed record to DETE, and created no mechanism compelling DETE to assess material in the DFA's custody.

The Tánaiste held both portfolios at the moment of transfer. He did not progress the outstanding obligation, did not refer the unprocessed record to the incoming authority, and issued no ministerial determination. The accumulated obligation was **not transferred** with the designation. It was structurally abandoned. This is the **Silence Veto** applied at the moment of structural transition.

The transfer did not produce a unified competent authority. It produced a competent authority function distributed across three institutions:

Institution	Function / Position
DETE	Holds the CA designation and administers the Export Authorisation System. Oversees licensing and exporter compliance—but only for commercial export applications, not for evaluation of a submitted research corpus.
DFA	Retains Ireland's memberships in the Wassenaar Arrangement, the Nuclear Suppliers Group, the MTCR, and the Australia Group—the treaty-level frameworks within which CA assessments are situated. No longer the competent authority.
Dept. of Defence	Retains the security and military application assessment architecture—civil defence, the OEP, the interdepartmental security environment assessment process. Has no role in DETE's licensing workflow.

None of these three institutions is formally required to consult either of the others before a licensing determination is made. Dual-use is dual because it requires both dimensions—commercial export and security application—to be assessed together. The current Irish structure assesses one dimension per institution, in separate buildings, under separate ministers, **with no coordination requirement**. The Commission's January 2024 White Paper on Export Controls identified inconsistent implementation, divergent national control lists, and a lack of coordinated political oversight as the primary EU-wide compliance failures. Ireland's post-transfer architecture is a precise institutional embodiment of all three simultaneously.

The Defence Technology Cluster Ireland has been established as a national coordination platform for civilian protection, critical infrastructure resilience, and emergency-response innovation—the precise domain the O.R.

submissions of 2006 addressed. No public record connects the DTCl's establishment to the twenty-year unprocessed record.

Two possibilities follow, and both belong in the Commission's evaluation record. If the DTCl was constituted without knowledge of the record: the Nullification Loop produced a policy instrument that reinvents, at public expense, a capability that has been in institutional custody since 2006. If the DTCl was constituted with knowledge of the record: the question of why the record was not surfaced within the DTCl's institutional formation is a different and sharper one.

Article 26 of EU Regulation 2021/821 requires the Commission to submit a report no later than **September 10th, 2028**, with the review commencing no later than **September 10th, 2026**. This evaluation is not contingent on domestic proceedings.

July 1st, 2026 is the political deadline. **September 10th, 2026** is the regulatory one. If the structural compliance failure is not resolved before the evaluation opens, it will enter the Commission's formal record as an open item —during a Presidency held by the member state whose compliance failure it documents.

VI.

Fragmentation as Ethical Failure: Byrne, Burke, McGrath, and Twenty Years Without a Cohesive Process

1. The Byrne Paradox: A Remit That Maps the Fragmentation Without Resolving It

Thomas Byrne holds the position of Minister of State —an operational role, not a cabinet seat. His remit spans European Affairs and Defence across three departments simultaneously: the Department of the Taoiseach, the Department of Foreign Affairs and Trade, and the Department of Defence. He chairs the Interdepartmental Committee on EU Engagement and has written to all ministerial colleagues underlining the importance of timely transposition. On its face, this is precisely the brief that should have surfaced the unperformed CA obligation under Regulation 2021/821.

It has not. The reason is sequential and technical. The Department of the Taoiseach provides the political coordination layer. The Department of Foreign Affairs and Trade retains the Wassenaar Arrangement, the Nuclear Suppliers Group, the MTCR, and the Australia Group regime memberships —the treaty-level frameworks within which any CA assessment must be situated. The Department of Defence retains the security assessment architecture: civil defence, the Office of Emergency Planning, and the interdepartmental security environment assessment process. These three departments together hold the *preconditions* for a CA assessment. They do not hold the CA function itself.

The CA designation —the statutory authority to evaluate dual-use items and issue determinations under Regulation 2021/821— was transferred to the Department of Enterprise, Trade and Employment on August 22nd, 2024. DETE is not within Byrne's remit. It reports to a separate cabinet minister. The consequence is precise: Byrne holds the preconditions for an integrated assessment across three departments; the authority to conduct that assessment sits in a fourth department he cannot direct. The integrated function the Regulation requires cannot be assembled from within his brief.

As Minister of State, Byrne is privy to cabinet strategy but does not hold a cabinet seat. The operational matters of enterprise within and without the EU —export licensing, dual-use compliance, trade regulation, and the Article 26 reporting obligation to the Commission— are distributed across no fewer than four cabinet-level ministers: the Taoiseach, the Tánaiste, the Minister for Enterprise Trade and Employment, and the Minister for Foreign Affairs and Trade. Byrne sits at the intersection of their remits without holding any of them. The power vacuum is not adjacent to his position. It is structural to it: each cabinet minister holds a fragment; the Minister of State holds the coordination function; and the coordination function has not coordinated.

2. The Competent-Authority Problem: Delegation Is Not Coordination

Peter Burke (Enterprise, Trade and Employment, Minister of State for European Affairs and Defence) holds the department in which DETE sits and through which the CA designation under Regulation 2021/821 is administered. By virtue of that portfolio, Burke is the minister notionally responsible for Ireland's export control compliance and the Article 26 statistical reporting obligation to the Commission. Thomas Byrne, by virtue of his European Affairs remit, is the minister notionally responsible for ensuring Ireland's compliance with EU law across departments —including Regulation 2021/821. Both ministers therefore bear some version of responsibility for the same statutory obligation. Neither holds the full institutional span required to discharge it. There is no statutory coordination mechanism between them.

The interference is architectural, not personal, and it operates in sequence. First: the CA assessment requires regime-membership context (held by DFA, within Byrne's remit) and security application context (held by DoD, within Burke's remit). Second: the authority to issue a determination sits with DETE (within Burke's remit). Third: no statutory mechanism requires Burke's department to consult Byrne's remit before issuing a determination, nor Byrne's remit to flag the unperformed obligation to Burke's department. The chain that the Regulation requires —precondition, assessment, determination— is split across two ministers with no bridge. Each step is administered. None is connected.

Minister	Portfolio	What They Hold	What They Cannot Access
Peter Burke	Enterprise, Trade and Employment; Minister of State for European Affairs and Defence	CA designation (DETE); Export Authorisation System; Article 26 reporting obligation	Regime memberships (DFA); security assessment architecture (DoD); institutional memory of the unprocessed 19-year record; any statutory coordination requirement with Byrne's remit.
Thomas Byrne, Minister of State	European Affairs and Defence (Dept. of Taoiseach, DFA, DoD)	Wassenaar/NSG/MTCR/Australia Group regime memberships (DFA); OEP and security assessment architecture (DoD); EU compliance coordination function (Taoiseach)	CA designation (DETE); licensing workflow; Export Authorisation System; any statutory authority over Burke's department. Operational position: no cabinet seat.
Integrated assessment — Reg. 2021/821	—	Precondition (regime context + security context) + CA authority + determination: three sequential steps	Step 1 sits with Byrne. Step 2 and 3 sit with Burke. No statutory mechanism connects them. The chain is split. No determination has been issued.

3. The Ethical Proposition: Twenty Years of Inter-Departmental Fragmentation Have Produced No Cohesive Process

The question the record poses is direct: across twenty years of engagement with Irish institutions —spanning five governments, six Taoisigh, multiple competent authority designations, two parliamentary terms of EU committee scrutiny, and the full apparatus of ministerial, civil service, and European oversight— where is the cohesive process? Where, once, did a single institutional actor hold the full picture and act on it?

The answer the record returns is: **nowhere**. Not once. What the record documents, across every interface, is a series of locally valid procedural outputs that collectively produce no outcome. Minister Martin committed to a report in 2009 and never produced it. The OEP declined jurisdiction in 2009 and reversed that position in 2025 without acknowledging the contradiction. DETE received the CA designation in 2024 without institutional memory of the obligation it was inheriting. The Seanad Select Committee refused a submission without a committee vote. The JCEUA deleted correspondence. The McEntee Foreclosure relied on contested, unanswered conclusions. Each of these is, in isolation, a procedurally defensible act. Together they constitute twenty years of institutional non-performance.

The ethical breach does not reside in any single decision. It is the **aggregate** of individually defensible non-decisions that together produce an indefensible institutional failure. Fragmentation is not merely the context of the breach —it is the breach mechanism. It allows each actor to discharge their own procedural code while the collective obligation goes permanently unmet. It provides individual cover for collective failure. And it has done so, without interruption, for twenty years.

The question "when can we see a cohesive process?" is not rhetorical. It is the precise question that no domestic institution has answered, because no domestic institution has been required to hold the full picture simultaneously. The Burke--Byrne interference, the three-institution CA fragmentation, the transfer-without-discharge, the parliamentary nullification loop —these are not separate failures. They are one failure, expressed differently at each institutional node. The ethical character of that failure is not diminished by its structural cause. It is compounded by it: the structure was available to be reformed at any point across twenty years, and was not.

4. McGrath as Systemic Closure: The Rule-of-Law Officer in Receipt of a Rule-of-Law Complaint

Commissioner Michael McGrath was formally notified of this matter as a TD in March 2020. He now holds the EU portfolio for Democracy, Justice, the Rule of Law, and Consumer Protection —the portfolio specifically charged with ensuring rule-of-law compliance by member states. He has been contacted in that capacity on five occasions: November 27th, 2025; February 4th, 2026; February 5th, 2026; April 2026; and the present submission. **Zero acknowledgements have been received.**

McGrath's silence is not merely a personal non-response. It is the systemic closure of the domestic fragmentation at the European level. The same autopoietic condition that has sustained the nullification loop domestically —each system processing communications according to its own internal code without reference to the substantive condition the input describes— here operates at the level of the Commissioner whose portfolio exists to prevent it. He was on notice as a TD. He is on notice as Commissioner. The obligation the domestic structure failed to discharge now sits

before the officer of the Union whose function is to ensure it is discharged. His silence places the systemic failure on the European institutional record in the most direct form available.

The Commissioner responsible for rule-of-law enforcement within the Union is the non-responding addressee in a rule-of-law complaint that originates from his own member state of origin, documents a twenty-year institutional failure of the kind his portfolio exists to remedy, and names him personally as having been on notice since 2020. That convergence —of origin, of portfolio, of foreknowledge, and of silence— will be before the European Ombudsman, the PETI Committee, and the Commission's evaluation of Regulation 2021/821 simultaneously.

Portfolio Strand	Department	Accountability Gap and EU Dimension
European Affairs / EU Compliance Coordination	Dept. of Taoiseach / DFA / DoD — Min. of State Thomas Byrne	Byrne's remit spans three of the four relevant institutions but excludes DETE (the CA). His EU compliance coordination function has not surfaced the unperformed CA obligation. Operational position: no cabinet seat. Power vacuum structural to the role.
CA Designation / Export Control Licensing	DETE — Peter Burke (Enterprise, Trade and Employment; Min. of State for European Affairs and Defence)	DETE holds the designation without institutional memory of the 19-year unprocessed record. No coordination mechanism with DFA (regimes) or DoD (security assessment) exists. Burke and Byrne share overlapping EU compliance responsibility with no statutory coordination requirement between them.
Burke--Byrne Interference	DETE / DFA / DoD / Dept. of Taoiseach	Two ministers bear overlapping responsibility for the same EU statutory obligation. Neither holds the full institutional span required to discharge it. No coordinated act has occurred. No statutory mechanism requires one.
Taoiseach orbit	Dept. of Taoiseach	Political accountability diffused across restructured portfolio. Secretary General Callinan: ten emails since June 18, 2025. Zero replies.
Irish Aid / International Development	DFA —Minister of State Richmond	Richmond holds the portfolio directly adjacent to the 2009 Irish Aid breach. Eleven documented threads. Six years. Zero substantive replies.
National Security adjacency	Multiple departments	Comprehensive Survey of O.R. Sub-Domains submitted to all named ministers. All are silent.
EU Rule of Law — Commissioner McGrath	European Commission	On notice as TD since 2020. On notice as Commissioner across five contacts since Nov. 2025. Portfolio: Democracy, Justice, Rule of Law, Consumer Protection. Zero acknowledgements. The rule-of-law officer is the non-responding addressee of the rule-of-law complaint.

VII.

Why Domestic Remedies Are Structurally Insufficient

The Ombudsman complaint, the parliamentary committee declinations, the Clerk's Section 8(3) determination of September 10th, 2025 —these are not failures of the individuals involved. They are outputs of systems that process inputs according to their own internal codes.

In the theoretical framework developed by Niklas Luhmann, legal and administrative systems are autopoietic: they reproduce themselves by processing communications in forms their own architecture can handle, without necessary reference to the substantive condition the input describes. Each domestic oversight body (e.g. the Ombudsman, the committee clerks, the Cathaoirleach) processes the complaint according to its own code: jurisdiction, standing, time limits, admissibility. A technicality is sufficient. The system produces a determination that is internally valid. The substantive question remains outside every domestic system's operational boundary.

This is not a conspiracy. It is a structural feature of differentiated functional systems: each system discharges its own procedural obligation without any system discharging the underlying substantive one. The result is a **nullification loop** that is self-sustaining, personnel-independent, and formally valid at every stage. It has operated through six Taoisigh and four governments without change of output.

The Commission's evaluation of Regulation 2021/821 operates from outside this boundary. It receives the Member State compliance record as an environmental fact, not as a communication to be processed according to domestic procedural rules. The European Ombudsman, the CJEU, and the PETI Committee operate at the same systemic level. These are the mechanisms through which the substantive question reaches an institution structurally positioned to examine it.

VIII.

Legal Analysis: Applicable Frameworks and Documented Breaches

The following table applies seventeen legal and constitutional frameworks to the factual record. **CRITICAL** ratings indicate grounds already sufficient for High Court or CJEU proceedings.

Legal Instrument	What It Requires	What the Record Shows	Assessment
Irish Constitution Art. 28.2	Government collectively responsible to Dáil for all executive action	The DFA exercised executive custody of proprietary materials for 18 years without Dáil account. The transfer to DETE occurred without ministerial determination. All named ministers have refused to acknowledge correspondence relevant to national security.	HIGH
Irish Constitution Art. 40.3	State must defend and vindicate personal rights, including property rights	26kg of proprietary materials retained by the State since 2006 without compensation, evaluation, or lawful basis. Tort of conversion ongoing.	HIGH
Irish Constitution Art. 15.2.1	Sole and exclusive power of making laws vested in the Oireachtas	Petition mechanism structurally nullified. 18 JCPP contacts, zero replies. 7 JCEUA contacts, no merits examination.	HIGH

Ethics in Public Office Act 1995, S.8(3)	Clerk determines if complaint is sustainable	Frivolous-and-vexatious determinations issued simultaneously by both Houses on Sep. 10, 2025 against a 226-page complaint. Persuasion standard invented and absent from the statute.	HIGH
Oireachtas Act 2013 S.8	Committee determinations must be made by the committee as a body	Seanad Select Committee Secretariat closed a submission without a committee vote, without a Standing Order, without statutory basis.	HIGH
EU Reg. 2021/821 (Dual-Use)	Member states must designate CA; evaluate dual-use items; issue statutory determination	DFA held designation 2009--2024: zero evaluations, zero determinations. Transfer to DETE Aug. 22, 2024 without discharge. Three-institution fragmentation makes integrated assessment architecturally impossible. Commission evaluation opens Sep. 10, 2026.	CRITICAL
EU Charter Art. 41 CFR	Right to good administration: impartial handling within reasonable time; right of access to file	JCEUA deleted correspondence post-declination. Bilateral same-day determinations without review. 19 years without determination.	HIGH
EU Charter Art. 47 CFR	Right to effective remedy before a tribunal	No body has examined this matter on the merits. Nullification Loop confirmed.	HIGH
Art. 4(3) TEU (Sincere Cooperation)	Member states must facilitate EU law objectives; refrain from jeopardising EU goals	Ireland holds the Council Presidency from Jul. 1, 2026. Chairs dual-use technology proceedings with a nineteen-year CA vacancy on record.	HIGH
Art. 2 TEU (Rule of Law)	Union founded on rule of law; member states must uphold legal certainty	Commissioner McGrath (Rule of Law portfolio) on notice as TD in 2020; took no action. Silent as Commissioner across five contacts. Nineteen years without determination is not consistent with legal certainty.	CRITICAL
Order 84 RSC (Judicial Review)	High Court may grant mandamus compelling a public authority to perform a refused duty	DFA had and failed its legal duty. McEntee Foreclosure independently reviewable on three irrationality grounds. Mandamus against DETE in preparation.	CRITICAL
Tort of Conversion (Common Law)	Unlawful exercise of dominion over another's property	26kg of proprietary O.R. materials retained without evaluation, compensation, or lawful basis since 2006.	HIGH
Fiduciary Duty (Constitutional)	State holds asymmetric power over civic intelligence; must act as trustee	Material of national security relevance submitted to all named ministers and Secretary General Callinan. No evaluative outcome produced.	HIGH
National Security (Inherent duty; Art. 28.2)	State has duty to evaluate material with documented national security implications	Comprehensive Survey submitted to all named ministers and SecGen Callinan. All silent. No minister has acknowledged the national security dimension.	HIGH
McEntee Foreclosure DOD-MO-01201-2025	Public bodies must provide adequate reasons; may not rely on contested, unanswered conclusions	Relies on OEP Jun. 1, 2025 conclusions formally rebutted Jun. 3 and never defended. Contradicts Kelliher 2009 position. Internally incoherent against Storm Éowyn. No reference to EU Reg. 2021/821.	CRITICAL
Commission White Paper on Export Controls (Jan. 2024)	Calls for consistent implementation, coordinated oversight, resolution of CA fragmentation	Ireland's post-transfer architecture embodies the three identified EU-wide failures simultaneously: inconsistent implementation, no coordinated oversight, no mechanism for integrated assessment.	CRITICAL

IX.

The Pattern of Non-Response: Ministerial, Civil Service, and European Silence, 2008-2026

Officer / Minister	Contact Pattern	What the Record Shows
Taoiseach Martin (Minister for Foreign Affairs, 2008--2011)	DFA correspondence 2008--2009.	Received Irish Aid presentation Feb. 2009. Committed personally to a ministerial report. CC'd on Jun. 2009 OEP correspondence. No report produced.
Taoiseach Martin (First Taoiseach tenure 2020--2022)	Auto-replies only: Mar. 13, Jul. 11, Jul. 13, Jul. 22, 2020	Four auto-replies during the Community Call period. All 220 Oireachtas members notified. Silence was a considered institutional posture.
Taoiseach Martin (Tánaiste, 2022--2025)	DFA-TMO-05256-2024; FIN-MO-03632-2024; last response May 16, 2025	Received dossier; requested concise summary; confirmed receipt; then went silent. The CA transfer occurred while the matter was formally on his desk.
Taoiseach Harris (Foreign Affairs, Int'l Trade & Defence)	DOT-TH-03856-2024 (Jun. 19, 2024). Non-response to all enquiries.	Held Foreign Affairs (CA obligation), International Trade (dual-use commercial), and Defence (OEP oversight) simultaneously. Initiated the post-Éowyn review. Nobody from that review contacted the petitioner.
Minister McEntee TD (Defence)	DOD-MO-01201-2025 (Feb. 5, 2026). Silent thereafter.	The McEntee Foreclosure is the last substantive contact from any ministerial office. It relied on contested and unanswered OEP conclusions as dispositive.
OEP: Rooney (2006), Kelliher (2009), McMoreland (2025)	Three contacts across nineteen years. Formal rebuttal submitted June 3rd, 2	025. 2006: acknowledged State interest, invited submission, stalled processing on credentials, identified no alternative body — thread terminated without destination. 2009: declined on remit grounds. 2025: issued adequacy conclusion five months after Storm Éowyn, without reconciling either prior position, without evaluating the corpus. Rebuttal of June 3rd, 2025 not answered across eight months. The McEntee Foreclosure relied on the 2025 conclusion as dispositive. That conclusion was contested, unanswered, and internally incoherent against the Storm Éowyn timeline.
Minister Burke TD (Enterprise, Tourism and Employment)	Formal notice in preparation.	DETE holds the CA designation under Minister Burke's department. DETE has no institutional memory of the unprocessed record. Notice of the accumulated obligation is required as a matter of record.
Minister of State Richmond TD (DFA)	Total silence. 11 documented threads, Mar. 2020--Feb. 2026.	Holds the portfolio directly adjacent to the 2009 Irish Aid breach. Six years. Zero substantive replies.
All 14 Irish MEPs	Total silence	All fourteen Irish MEPs formally contacted. No substantive engagement from any.

EU Commissioner Michael McGrath (Rule of Law portfolio)	Five contacts Nov. 2025--Apr. 2026. Previously silent as TD since 2020.	First notified as TD in 2020. Now holds EU portfolio for rule-of-law compliance by member states. Submission names Article 2 TEU breach as live characterisation. Not responded.
Secretary General John Callinan (Dept. of Taoiseach)	10 emails Jun. 18, 2025--present. Zero replies.	Formal communications including the Comprehensive Survey of O.R. Sub-Domains, directly relevant to national security. Apex of executive civil service operationally silent.
Secretary General, DFA (unnamed; inaccessible)	Publicly listed channels non-functional.	The former competent authority under EU Regulation 2021/821 cannot be reached through any standard public mechanism.

Taoiseach Micheál Martin is not merely one of many silent ministers. His office issued a commitment to resolve the matter in February 2009. On September 25th, 2009, as the petitioner's constituency TD and as Minister of Foreign Affairs, Mr Martin gave a clear verbal commitment to review the material at a meeting at the petitioner's residence, Ballyphehane, Cork. His continuous foreknowledge across every office he has held is established across: his 2008--2011 tenure as Minister for Foreign Affairs; his 2020 Taoiseach tenure; his Tánaiste period 2022--2025; and his current second tenure as Taoiseach, during which the obligation created in 2009 is now on his desk as head of government. It has not been acknowledged, discharged, or formally declined. The period from the 2009 commitment to the present is approximately **seventeen and a half years**. Taoiseach Martin is not simply a recipient of correspondence. He is the institution. The unperformed ministerial act is his.

X.

The Questions Before the Record

The record before EU institutional recipients is not whether this record exists. It does. It is publicly indexed at dr-crunch.github.io/nullification-loops, available in 14 EU languages, and transmitted to: PETI (Article 227 TFEU, pending), the European Ombudsman (Article 228 TFEU, reference OMB-260331-CSD014), Commissioner McGrath's office, Commissioner Šefčovič's office, DG Competitiveness and Trade (Council Secretariat), and the Registry of the Court of Justice of the European Union.

High Court mandamus proceedings are in preparation under Order 84 RSC. The primary application seeks certiorari of the McEntee Foreclosure on three independent irrationality grounds and mandamus compelling the performance of the competent authority evaluation obligation. Parallel CJEU proceedings are in preparation under Articles 41 and 47 CFR, Articles 2 and 4(3) TEU, and Regulation 2021/821.

First. Ireland's designated competent authority under EU Regulation 2021/821 produced zero determinations in eighteen years. The transfer to DETE occurred without discharge of the accumulated obligation. Is this, in the Commission's evaluation of Regulation 2021/821 opening September 10th, 2026, a compliance failure requiring formal assessment?

Second. The current Irish CA architecture distributes the evaluation function across three institutions with no statutory coordination mechanism. The Commission's January 2024 White Paper identified the absence of coordinated

oversight as a primary EU-wide failure. Is Ireland's post-transfer architecture consistent with the Regulation's requirements?

Third. Ireland assumes the Council Presidency on July 1st, 2026, chairing proceedings on dual-use technology controls —the precise domain in which the compliance failure documented in this submission is located. Can a Member State lawfully hold the Council Presidency while suppressing an ethics complaint that documents its own breach of Treaty obligations in areas within that Presidency's functional responsibilities?

The only variable is whether these questions are answered before July 1st, 2026 or during the Presidency.

A designated EU competent authority produced zero determinations across eighteen years. The transfer to the current authority occurred without discharge. The current architecture makes integrated assessment structurally impossible. The Commissioner for the Rule of Law has been given this file and has not responded. Ireland currently has 46 open infringement cases before the Commission and 6 referred to the CJEU. The Commission's evaluation of Regulation 2021/821 opens September 10th, 2026. High Court mandamus proceedings and CJEU parallel filings are in preparation and will not be held in abeyance indefinitely.

Is sa Oireachtas atá cumhacht reachtaíochta an Stáit uile agus go heisiatach dílsithe: ní bheidh ag aon chomhlacht eile cumhacht dlíthe a dhéanamh don Stáit.

Bunreacht na hÉireann, Airteagal 15.2.1°

Tá an taifead seo fós oscailte. Tiocfaidh a chinneadh ina am.

ANNEX

Procedural Targeting: COMPET-Track Choke-Points

This annex is addressed to recipients with operational standing to act on the record in Sections I-X. The evidentiary substance is complete in the main text. What follows is not a further summary of that record but a discrete register of the procedural roles that control intake, filtration, and escalation on a COMPET-track file —the track on which EU Regulation 2021/821 implementation sits at the Council interface with Parliament.

The formal complaint's Annex III-IV documented in detail the specific O.R. corpus, its dual-use characteristics, and its operational application to critical infrastructure protection. Those annexes are primary source material. The risk in any further transmission cycle is the accumulation of summary layers that displace rather than direct engagement with primary material. The six roles below are identified precisely to break that cycle: they are the points at which primary material, rather than summaries of summaries, must be placed.

#	Role	Structural Position	Operational Significance
1	Council Working Party Chair (Presidency)	Rotating Member State official chairing the relevant COMPET working party during the Irish Presidency (Jul.--Dec. 2026)	First structured point where Parliament positions are dissected and Member State divergences surfaced. Controls agenda sequencing and compromise text drafting. The Presidency's own compliance record is directly relevant to the credibility of any compromise it brokers on dual-use controls.
2	National Delegate —Ireland (COMPET Working Party)	Irish official attending the same working party; feeds instructions back to Dublin and shapes the national position in real time	Often more accessible than ministerial principals and more responsive to structured external submissions. The delegate is in direct contact with both DETE (current CA) and the Permanent Representation. A submission delivered at working party level carries formal record status without requiring ministerial clearance.

3	Irish Permanent Representative to the EU (COREPER II)	Ambassador-level; sits in COREPER II which prepares the relevant Council configurations	The compliance record documented in this submission is directly within COREPER's preparation remit for the dual-use dossier. The Permanent Representation is a parallel channel to the working party delegate —and is the point where a failure to reconcile the domestic compliance gap with the Presidency agenda becomes formally visible.
4	European Parliament Rapporteur (INTA or IMCO Committee)	EP lead on any legislative or non-legislative instrument touching Reg. 2021/821 during the review window	The rapporteur controls the EP's draft report and shadow rapporteur consultations. A PETI petition (pending) creates a parallel EP channel; the rapporteur is the legislative-track complement. Direct submission at this level places the compliance record in the EP's formal dossier, not merely in correspondence.
5	DG TRADE / DG DEFIS Desk Officer (Reg. 2021/821 evaluation)	Commission official responsible for the Article 26 evaluation that opens Sep. 10, 2026	The evaluation is mandatory and operates on the Member State compliance record as filed. Submission directly to the responsible desk officer ensures the compliance record enters the evaluation dossier at the technical level where it will be processed. DG Competitiveness and Trade (Council Secretariat) has been notified (Apr. 22, 2026); the Commission-side desk officer is the counterpart target.
6	PETI Committee Coordinator (European Parliament)	EP official managing the pending Article 227 TFEU petition through admissibility and assignment	Once admitted, the PETI petition triggers a formal Commission response and potentially a hearing. The coordinator controls the procedural timeline and assignment to a rapporteur. Early engagement at this level —before admissibility is determined— shapes whether the petition is processed as a technical compliance matter or as a rule-of-law referral under Art. 2 TEU.

The six roles above share a structural property: they operate at the procedural layer where primary material is either entered into the formal record or filtered out of it. The Nullification Loop documented in Sections I–X has operated domestically because each system processed the submission according to its own procedural code rather than its substantive content. The COMPET-track roles listed here operate under different codes —legislative, technical, and evaluative— and are therefore not subject to the same filtration dynamic. Placement of primary material at these points is the structural intervention the domestic record has not produced.